



File No.: EXP202414290

RESOLUTION OF TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 18, 2025, the Presidency of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against ALVEA SOLUCIONES TECNOLÓGICAS, S.L. (hereinafter, ALVEA), through the agreement that is transcribed:

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File No.: EXP202414290

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 07/10/2024, a complaint was filed with the Spanish Agency for Data Protection against ALVEA SOLUCIONES TECNOLÓGICAS, S.L. with NIF B88024450 (hereinafter, the complained party). The reasons for the complaint are as follows: the complainant states that the complained company calls by phone offering job positions and subsequently sends an email to transfer the data of the person they have called. It also indicates that the mentioned email contains a Google form that states that the data will be transferred to other entities that work with the complained company, but the information provided in the form ends up in a spreadsheet that can be accessed by anyone who has the URL to that document, which also contains the name and ID number of individuals who have not allowed their data to be transferred. It also states that another section of the form that must be filled out indicates that the data will be kept for a maximum period of 18 months, which is also not complied with as the spreadsheet contains data from the year 2020.

The complainant provides the following documentation:

a) an EXCEL document with 10,837 individuals and the consent clause from the form sent by the complained company, showing the name, surname, and ID number of the users who filled out the form (the complainant's data does not appear);

b) a notepad with the two links from the email: Form: https://docs.google.com/forms/d/e/1FAIpQLSd3vvsytJKQc9nphefEPvLZ_ufo4B6SGPkx9Pmv75KhwgxrYw/viewform and

Excel: <https://docs.google.com/spreadsheets/d/1vBD-5hzQ7WowlZ-yxcoLK6kG5TRE7k55p41bcXIh3l/edit?pli=1&gid=262149063#gid=262149063>;

c) a screenshot of the email sent by the complained company to the complainant in which the two links appear and it is observed attaching the possible EXCEL document of consent with the users, with an undetermined date;

d) a screenshot of a part of the EXCEL document with the 10,837 individuals.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on 17/10/2024, the aforementioned complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified on 18/10/2024, as evidenced by the acknowledgment of receipt in the file.

ON 14/11/2024, the complained party responded indicating that it had analyzed the complaint and acknowledged that an administrative error had occurred, which it qualifies as isolated, by including an internal use link alongside the link to the registration sent to candidates to request their consent and transfer of the treatment of the application, adopting the following measures:

1. Evaluate the need to appoint a Data Protection Officer (DPO), given the increase in the volume of

such treatments and the increase in the number of employees in recent times, and that the newly appointed DPO has coordinated with the current consulting company in the matter, the management of this information request and will evaluate the appropriate controls to implement.

2. The day after learning of the incident, a security measure was implemented that consisted of limiting access to that internal link, so that the link was disabled and, therefore, the data was no longer accessible from the mentioned link.

3. Additionally, it was verified and confirmed that only previously authorized personnel can open that link, confirming that this measure has been effective.

4. Another measure was implemented so that the technical selection personnel of ALVEA only have access to the essential data of candidates who have given their consent in the last 18 months, as the rest of the data remains blocked until its total deletion, after the legal retention periods.

5. All of this has been reflected and updated in the candidate selection management procedure that has been communicated internally, a management that allows for the elimination of threats arising from involuntary administrative errors such as the one that occurred.

6. On 23/10/2024, an email was sent to the candidate whose purpose is delineated in the subject of the email: "Subject of the email: Information about an error from ALVEA

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linked to your selection process and request for deletion of the previously sent email."

It states that after receiving the notification from the AEPD, it promptly met with the external consulting firm in data protection, urging them to gather information regarding the incident reported by the Agency to reflect it in the appropriate Security Incident.

From the analysis conducted, it is confirmed that the administrative error originated from a recently hired selection technician who, despite having received the appropriate onboarding training in the company, sent the email to the candidate for registration, including two links, both the internal link and the external one, instead of only the latter.

THIRD: On 15/11/2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: According to the report collected from the AXESOR tool, the company ALVEA SOLUCIONES TECNOLÓGICAS, S.L. was established in 1918, with a turnover of €7,264,681 in 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated. The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it will lapse, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on

the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

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III

Unfulfilled obligation: infringement of Article 5.1.f) of the GDPR

The claimed facts materialize in the sending to the claimant, in the candidate selection process carried out by the respondent, of a link providing access to an internal list of candidates containing their personal data, which could lead to a violation of the regulations on personal data protection.

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...) f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality' ...)."

The documentation in the file provides clear indications that the respondent violated Article 5 of the GDPR, principles relating to processing, by allowing access to personal data belonging to third parties, motivated by the sending of the link that provided unrestricted and uncontrolled access to an internal list of candidates prepared by the respondent.

The respondent, in its response dated 14/11/2024, acknowledged regarding the incident that "...it has analyzed the complaint and recognizes that, despite all the activities undertaken in these years and the due diligence measures adopted and mentioned in the previous point, a specific administrative error occurred by including an internal use link, along with the correct registration link sent to candidates to request their consent and transfer of their application processing. (...) From the analysis conducted, it is confirmed that the administrative error originated from a recently hired selection technician who, despite having received the appropriate onboarding training in the company, sent the email to the candidate for registration, including two links, both the internal link and the external one, instead of only the latter (...)."

Upon analyzing the information provided by the respondent, it is observed that all the indicated measures were adopted only after this Agency communicated the complaint filed, so there are no prior measures that could have prevented the incident. Thus, in accordance with the evidence available in this initiation agreement of the sanctioning procedure and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to the respondent for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

In accordance with the evidence available and without prejudice to what results from the instruction, it is considered that the respondent did not adequately guarantee the confidentiality of personal data.

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The infringement attributed to the entity is classified under Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is subject to sanctions, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of prescription, that they are: "Very serious infringements:

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679 (...)."

V

Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied in accordance with Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

In accordance with the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR for which the accused party is held responsible, the following factors are considered concurrent:

- The severity of the infringement (Article 83.2.a) of the GDPR): in this case, access has been gained to data of 10,837 individuals, including names, surnames, and ID numbers of users who filled out the form, so that although this sanctioning procedure arises from a complaint, the scope of the possible affected parties by this same circumstance would affect all those whose data has been revealed.

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- The intent or negligence in the infringement (Article 83.2.b) of the GDPR): there is a serious lack of diligence in complying with the obligations imposed by data protection regulations, as it allows access to personal data, violating its confidentiality; in this regard, the ruling SAN of 17/10/2007 can be cited, which, although issued before the GDPR came into force, is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard."

- The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the entity being claimed, where the events have occurred, the processing of personal data is essential; therefore, given its object and business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k of the GDPR).

For the purpose of deciding on the fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, taking into account the criteria of Article 83.2 of the GDPR regarding the infringement committed, violation of Article 5.1.f) of the GDPR, it allows for an initial fine of 35,000 euros to be set.

VI

Adoption of measures

The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are listed in Article 58.2, paragraphs a) to j).

If the infringement committed is confirmed, it would be appropriate to propose to the responsible party the adoption in the resolution that is adopted, of adequate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Therefore, it would be considered appropriate to order that the respondent, within six months from the finality of the sanctioning resolution that is issued in any case, proceed to adapt the processing subject to this procedure to the applicable regulations. The text of this agreement establishes what the facts are that have allegedly led to the violation of data protection regulations, from which it is clearly

inferred what measures should be adopted, without

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to the detriment of the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the respondent, as it is the one that fully understands its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

In the present case, among other measures to be adopted, the improvement of those already implemented, communicated by the respondent in response to the transfer action, is noted to avoid incidents like the one that occurred, ensuring the principle of confidentiality in the processing of data in accordance with what is stated in Article 5.1.f) of the GDPR, specifically:

- Measures that prevent the means that allow clients to access data other than that provided by the recipients themselves from being included in emails or other communications to their clients.
- Evaluation by the DPO of the controls effectively implemented.

It is warned that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS HEREBY

AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURES against ALVEA SOLUCIONES TECNOLÓGICAS, S.L., with NIF B88024450, for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT R.R.R. as Instructor and S.S.S. as Secretary, indicating that either of them may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated by the Inspection Services; all of which are part of the file.

FOURTH: THAT for the purposes provided in Article 64.2.b) of the LPACAP and Article 58.2.b) of the GDPR, the sanction that may correspond for the violation of Article 5.1.f) of the GDPR would be €35,000 (thirty-five thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this Agreement to ALVEA SOLUCIONES TECNOLÓGICAS, S.L., with NIF B88024450, expressly indicating its right to a hearing in the procedure and granting it a period of TEN WORKING DAYS to submit allegations and propose the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

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If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €28,000, concluding the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will result in a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €28,000, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations regarding the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €21,000.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. For these purposes, in the event of opting for either of them, you must send an express communication of the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction to the General Subdirectorate of Data Inspection.

If you choose to proceed with the voluntary payment of any of the amounts indicated above (€8,000 or €6,000), you must make it effective by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection along with the communication of the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, you are warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure as completed and proceeding with the process. You are informed that you can identify an email address to this Agency to receive the notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

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Lastly, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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SECOND: On March 31, 2025, ALVEA proceeded to pay the fine in the amount of €21,000.00, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: On April 1, 2025, by resolution of rectification of errors from the Presidency of the Spanish Agency for Data Protection, a partial rectification of the previously identified initiation agreement was made, as the corresponding examination revealed the existence of material errors, which were rectified in the following terms:

- Section FOURTH of the AGREED, on page 8, should state “THAT for the purposes provided in Article 64.2.b) of the LPACAP and Article 58.2.b) of the GDPR, the sanction that may correspond for the violation of Article 5.1.f) of the GDPR would be €35,000 (thirty-five thousand euros), without prejudice to what results from the instruction.”

- In the fourth paragraph on page 9, it should state “In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (€28,000 or €21,000), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.”

FOURTH: In the previously transcribed initiation agreement, it was stated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading “Termination in sanctioning procedures” provides as follows:

“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the corresponding sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be determined in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

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In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the initiation agreement notified informed about the possibility of acknowledging responsibility and making a voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 21,000.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, ALVEA has proceeded to acknowledge responsibility and make a voluntary payment of the sanction, availing itself of the two reductions provided for. In accordance with paragraph 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the commission of the infringements and CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution and in accordance with the terms of the rectification of material errors referred to. The sum of the aforementioned amounts yields a total amount of 35,000.00 euros.

After ALVEA SOLUCIONES TECNOLÓGICAS, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in the final amount of 21,000.00 euros. The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or waiver of any action or appeal in the administrative route.

SECOND: TO DECLARE the termination of procedure EXP202414290, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER ALVEA SOLUCIONES TECNOLÓGICAS, S.L. to notify the Agency within 6 months from the date this resolution becomes firm and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to ALVEA SOLUCIONES TECNOLÓGICAS, S.L.

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FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility upon the withdrawal or waiver of any action or appeal in the administrative route, this resolution will be firm in the administrative route and fully enforceable from the date of its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeaepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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President of the Spanish Agency for Data Protection

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